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SINGLE-PARENT FAMILY SUPPORT ACT

[Enforcement Date 17. Jul, 2018.] [Act No.15355, 16. Jan, 2018., Partial Amendment]

여성가족부 (가족지원과) , 02-2100-6364

CHAPTER I GENERAL PROVISIONS

Article 1 (Purpose) The purpose of this Act is to contribute to the stabilization of living and to the promotion of welfare of single-parent families by supporting them to maintain the stable functioning of family and stand on their own feet. [<Amended by Act No. 15355, Jan. 16, 2018>](#)

[This Article Wholly Amended by Act No. 8655, Oct. 17, 2007]

Article 2 (Responsibility of the State, etc.)(1) The State and local governments shall take the responsibility of promoting the welfare of single-parent families.

(2) The State and local governments shall create environments to support the rights and interests, and independence of single-parent families, and formulate and implement policies therefor. [<Newly Inserted by Act No. 10582, Apr. 12, 2011; Act No. 12330, Jan. 21, 2014; Act No. 15355, Jan. 16, 2018>](#)

(3) The State and local governments shall take necessary measures such as education and public relations, in order to prevent prejudice and discrimination against single-parent families and ensure that each member of the community will understand and respect the families. [<Newly Inserted by Act No. 11674, Mar. 22, 2013; Act No. 14448, Dec. 20, 2016>](#)

(4) The Minister of Education and the superintendent of education in a Special Metropolitan City, Metropolitan City, Special Self-Governing City, Do, or Special Self-Governing Province shall formulate and implement policies to require kindergartens defined in Article 2-2 of the Early Childhood Education Act and schools defined in Article 2 of the Elementary and Secondary Education Act and Article 2 of the Higher Education Act to provide education that facilitates the understanding of single-parent families. [<Newly Inserted by Act No. 14448, Dec. 20, 2016>](#)

(5) The State and local governments shall endeavor to achieve the self-support of young single-parent families. [<Newly Inserted by Act No. 12330, Jan. 21, 2014>](#)

(6) Every citizen shall cooperate in promoting the welfare of single-parent families.

[This Article Wholly Amended by Act No. 8655, Oct. 17, 2007]

Article 3 (Rights and Responsibilities of Single-Parent Families)(1) The mother or father of each single-parent family shall not be discriminated in education, employment, etc. due to pregnancy, childbirth or parenting without rational ground. [<Newly Inserted by Act No. 10582, Apr. 12, 2011>](#)

(2) The mother or father and child of each single-parent family shall have a right to participate in the procedures to determine policies related to single-parent families. [<Newly Inserted by Act No. 15355, Jan. 16, 2018>](#)

(3) The mother or father and child of each single-parent family shall endeavor to achieve self-support and to improve the standard of living by making the most of their assets, labor ability, etc. [<Amended by Act No. 10582, Apr. 12, 2011>](#)

[This Article Wholly Amended by Act No. 8655, Oct. 17, 2007]

Article 4 (Definitions)The definitions of terms used in this Act shall be as follows: [<Amended by Act No. 8852, Feb. 29, 2008; Act No. 9932, Jan. 18, 2010; Act No. 10582, Apr. 12, 2011; Act No. 11291, Feb. 1, 2012; Act No. 12330, Jan. 21, 2014>](#)

1. The term "mother" or "father" means any of the following persons who raises his/her own child or children:
 - (a) A person who is bereaved of, divorced from, or abandoned by his/her spouse;
 - (b) A person who has a spouse who has lost his/her labor ability for a long time due to a mental or physical disability;
 - (c) A person whose spouse is an inmate in a correctional institution or medical treatment and custody institution, or in military service;
 - (d) An unmarried person (excluding a person in a de facto marital relationship);
 - (e) A person corresponding to those defined in items (a) through (c) and prescribed by Ordinance of the Ministry of Gender Equality and Family;
- 1-2. The term "young single-parent" means a mother or father of 24 years old or under;
2. The term "single-parent family" means either a mother-and-child family or father-and-child family;
3. The term "mother-and-child family" means a family in which mother is the householder (including a person who actually supports members of a household even though she is not the householder);
4. The term "father-and-child family" means a family in which father is the householder (including a person who actually supports members of a household even though he is not the householder);
5. The term "child" means a person under 18 years of age (referring to a person under the age of 22 where he/she attends school and a person under the age to which the period of his/her military service is added where he/she attends school after performing his/her military services under the Military Service Act);
6. The term "supporting agency" means the State or local governments that provide support under this Act;
7. The term "single-parent family welfare organization" means an agency or organization established to promote the welfare of single-parent families.

[This Article Wholly Amended by Act No. 8655, Oct. 17, 2007]

Article 5 (Scope of Persons Eligible for Support)(1) A person eligible for support under this Act shall be a person prescribed by Ordinance of the Ministry of Gender Equality and Family, who falls under any of subparagraphs 1, 1-2, and 2 through 5 of Article 4. [<Amended by Act No. 8852, Feb. 29, 2008; Act No. 9932, Jan. 18, 2010; Act No. 10582, Apr. 12, 2011; Act No. 12330, Jan. 21, 2014>](#)

(2) In cases of a single-parent family that has a child or children over the age of a child among those eligible for support under paragraph (1), the rest of family members excluding such child or children shall be eligible for support. [<Newly Inserted by Act No. 10582, Apr. 12, 2011; Act No. 12330, Jan. 21, 2014>](#)

[This Article Wholly Amended by Act No. 8655, Oct. 17, 2007]

Article 5-2 (Special Cases concerning Persons Eligible for Support)(1) Notwithstanding Article 5, persons who are not in a matrimonial relationship but in pregnancy or mothers not rearing a child after giving birth to the child shall be eligible for the support prescribed by this Act when using the welfare facilities for unmarried-mothers-and-children families referred to in Article 19 (1) 3. [<Amended by Act No. 10582, Apr. 12, 2011; Act No. 12330, Jan. 21, 2014; Act No. 15355, Jan. 16, 2018>](#)

(2) Notwithstanding Article 5, any of the following children and a grandfather or grandmother prescribed by Ordinance of the Ministry of Gender Equality and Family who raises the child shall be eligible for the support

prescribed by this Act: [<Amended by Act No. 8852, Feb. 29, 2008; Act No. 9932, Jan. 18, 2010; Act No. 10582, Apr. 12, 2011; Act No. 12330, Jan. 21, 2014>](#)

1. A child whose parents have both died, or a child in whose case it is unknown whether the child's parents are alive or dead;
2. A child whose parents have lost their labor ability for a long time due to a mental disorder, a physical disability, or diseases;
3. A child who cannot be supported due to long-time penal servitude, etc. of his/her parents;
4. A child who cannot be supported because his/her parents have divorced or deserted him/her;
5. A child corresponding to those provided for in subparagraphs 1 through 4 and prescribed by Ordinance of the Ministry of Gender Equality and Family.

(3) If a foreigner prescribed by Presidential Decree, who has married a citizen of the Republic of Korea, raises a child with Korean nationality and resides in the Republic of Korea, falls under Article 5, he/she shall be eligible for the support prescribed by this Act. [<Amended by Act No. 12330, Jan. 21, 2014>](#)

[This Article Wholly Amended by Act No. 8655, Oct. 17, 2007]

Article 5-3 (Provision and Publicity of Materials or Information) The State and local governments shall endeavor to provide and publicize materials or information necessary to discover persons eligible for the support prescribed by this Act.

[This Article Newly Inserted by Act No. 15355, Jan. 16, 2018]

Article 5-4 (Single-Parent Family Day) (1) In order to enhance people's interest in and attention to single-parent families, the tenth day of May of each year shall be designated as the Single-Parent Family Day.

(2) The State and local governments may implement programs, such as events suitable for the purposes of the Single-Parent Family Day.

[This Article Newly Inserted by Act No. 15355, Jan. 16, 2018]

Article 6 (Status Survey, etc.) (1) The Minister of Gender Equality and Family shall conduct status survey on single-parent families every three years and publish findings from the survey in order to utilize such findings for formulating policies to support single-parent families. In addition, the Minister of Gender Equality and Family may, if necessary, conduct survey and research on the actual status of young single-parents, etc., as prescribed by Ordinance of the Ministry of Gender Equality and Family. [<Amended by Act No. 15212, Dec. 12, 2017>](#)

(2) The Minister of Gender Equality and Family may request cooperation from related public institutions, or related corporations or organizations, such as submission of necessary data to conduct status survey under paragraph (1), and related public institutions, or related corporations or organizations in receipt of such request shall provide cooperation where there is a compelling reason not to do so.

(3) The subject matter and method of status survey under paragraph (1) and other necessary matters shall be prescribed by Ordinance of the Ministry of Gender Equality and Family.

[This Article Newly Inserted by Act No. 10582, Apr. 12, 2011]

Article 6-2 (Education for Public Officials in Charge of Support for Single-Parent Family) The State or local governments may conduct education on public officials in charge of support for single-parent families to promote their understanding of single-parent families and improve their expertise thereon.

[This Article Newly Inserted by Act No. 14448, Dec. 20, 2016]

Article 7 Deleted. [<by Act No. 10582, Apr. 12, 2011>](#)

Article 8 Deleted. [<by Act No. 10582, Apr. 12, 2011>](#)

Article 9 (Support, etc. for Single-Parent Family Welfare Organizations) (1) The State and local governments may provide single-parent family welfare organizations with subsidies to cover the whole or some

of costs necessary therefor or provide them with administrative assistance necessary for their business affairs.

(2) The State and local governments may support the programs, etc. of self-help gathering organizations aiming at sharing information, mutual aids, etc. between single-parent families.

[This Article Wholly Amended by Act No. 15355, Jan. 16, 2018]

CHAPTER II DETAILS AND IMPLEMENTATION OF WELFARE

Article 10 (Surveys, etc. on Persons Eligible for Support)(1) A Special Self-Governing City Mayor, the Governor of a Special Self-Governing Province, or the head of a Si/Gun/Gu (referring to the head of an autonomous Gu; hereinafter the same shall apply) shall conduct a survey on the family situations and living status of persons eligible for support within his/her jurisdiction at least once a year. [<Amended by Act No. 10302, May 17, 2010; Act No. 10582, Apr. 12, 2011; Act No. 12330, Jan. 21, 2014>](#)

(2) A Special Self-Governing City Mayor, the Governor of a Special Self-Governing Province, or the head of a Si/Gun/Gu shall prepare and keep the register of findings from a survey conducted under paragraph (1): Provided, That when he/she utilizes an information system under Article 6-2 (2) of the Social Welfare Services Act, he/she may prepare and manage the findings from surveys in an electronic form. [<Amended by Act No. 10582, Apr. 12, 2011; Act No. 12330, Jan. 21, 2014>](#)

(3) Matters necessary for conducting surveys under paragraph (1) and preparing and managing the register under paragraph (2) shall be prescribed by Ordinance of the Ministry of Gender Equality and Family. [<Amended by Act No. 10582, Apr. 12, 2011>](#)

(4) and (5) Deleted. [<by Act No. 10582, Apr. 12, 2011>](#)

[This Article Wholly Amended by Act No. 8655, Oct. 17, 2007]

Article 11 (Applications for Welfare Benefits)(1) A person eligible for support, his/her relatives, or any other interested person may file an application for welfare benefits provided for in Article 12 with the competent Special Self-Governing City Mayor, the Governor of the competent Special Self-Governing Province, or the head of the competent Si/Gun/Gu. [<Amended by Act No. 10302, May 17, 2010; Act No. 12330, Jan. 21, 2014>](#)

(2) A written consent given by a person eligible for support to the provision of the following data or information shall be submitted when filing an application for welfare benefits under paragraph (1): [<Amended by Act No. 11291, Feb. 1, 2012; Act No. 12330, Jan. 21, 2014>](#)

1. The average balance of his/her deposit among data or information on the details of financial assets and financial transactions defined in subparagraphs 2 and 3 of Article 2 of the Act on Real Name Financial Transactions and Confidentiality and other data or information (hereinafter referred to as "financial information") prescribed by Presidential Decree;
2. The amount of debt among credit information defined in subparagraph 1 of Article 2 of the Credit Information Use and Protection Act and other data or information (hereinafter referred to as "credit information") prescribed by Presidential Decree;
3. Premiums paid after purchasing an insurance policy under the subparagraphs of Article 4 (1) of the Insurance Business Act and other data or information (hereinafter referred to as "insurance information") prescribed by Presidential Decree.

(3) Matters necessary for methods of and procedures for filing applications for welfare benefits under paragraph (1) and methods of and procedures for obtaining consent under paragraph (2) and other matters shall be prescribed by Ordinance of the Ministry of Gender Equality and Family. [<Newly Inserted by Act No. 11291, Feb. 1, 2012>](#)

[This Article Wholly Amended by Act No. 8655, Oct. 17, 2007]

Article 12 (Details of Welfare Benefits)(1) Upon receipt of an application for welfare benefits under Article 11, the State or a local government shall grant the following welfare benefits: Provided, That, if any person eligible

for support under this Act receives support under other statutes, such as the National Basic Living Security Act, the amount of benefits under this Act shall not be granted within the limits of the benefits provided thereunder:

<Amended by Act No. 10582, Apr. 12, 2011; Act No. 12330, Jan. 21, 2014>

1. Cost of living;
2. Children education subsidies;
3. Deleted; <by Act No. 10582, Apr. 12, 2011>
4. Childcare expenses;
5. Other expenses prescribed by Presidential Decree.

(2) When the State or a local government pays childcare expenses referred to in paragraph (1) 4, if any unmarried mother or unmarried father raises a child of five years old or under or any young single-parent raises a child, it shall grant an additional welfare benefit to him/her within budgetary limits. In such cases, the same shall also apply where a lineal ascendant of an unmarried mother or unmarried father raises a child of five years old or under. <Amended by Act No. 10582, Apr. 12, 2011>

(3) Where a person eligible for support under this Act files an application, the State or a local government may additionally pay vocational training expenses and living expenses during the period of training within budgetary limits. <Newly Inserted by Act No. 10582, Apr. 12, 2011; Act No. 12330, Jan. 21, 2014>

(4) Standards and procedures for granting welfare benefits under paragraphs (1) through (3) and other necessary matters shall be prescribed by Ordinance of the Ministry of Gender Equality and Family. <Amended by Act No. 10582, Apr. 12, 2011>

[This Article Wholly Amended by Act No. 8655, Oct. 17, 2007]

Article 12-2 (Verification of Grounds for Welfare Benefits, etc.)(1) The Minister of Gender Equality and Family, a Special Self-Governing City Mayor, the Governor of a Special Self-Governing Province, or the head of a Si/Gun/Gu may request a person eligible for support who files an application for welfare benefits pursuant to Article 11 or person eligible for support who receives welfare benefits under Article 12 to submit data on his/her income, property, etc. necessary for verifying the occurrence, change or cessation of grounds for welfare benefits and may have a public official under his/her jurisdiction enter the residence, etc. of a person eligible for support to examine his/her living conditions, income data, etc. or make necessary inquiries of related persons, such as the employer of the person eligible for support. <Amended by Act No. 12330, Jan. 21, 2014>

(2) The Minister of Gender Equality and Family, a Special Self-Governing City Mayor, the Governor of a Special Self-Governing Province, or the head of a Si/Gun/Gu may request the heads of related agencies and institutions to provide him/her with data on national tax, local tax, land, buildings, health insurance, employment insurance, national pension, immigration records, admission to or discharge from a correctional institution or medical treatment and custody institution, military service, resident registration, registration of family relationships, etc. necessary for verifications under paragraph (1). In such cases, the heads of related agencies and institutions in receipt of a request to provide data shall comply therewith unless there is good cause. <Amended by Act No. 12330, Jan. 21, 2014>

(3) A public official who enters residence, conducts an examination, or makes an inquiry under paragraph (1) shall carry a certificate of identification indicating his/her authority and produce it to related persons.

(4) No person who performs or has performed the duties under paragraph (1) or (2) shall either use data or other fact he/she has obtained or become aware of in the course of performing his/her duties differently from the purpose provided for in this Act or divulge such data or fact.

[This Article Newly Inserted by Act No. 11291, Feb. 1, 2012]

Article 12-3 (Provision of Financial Information, etc.)(1) Where the Minister of Gender Equality and Family deems it necessary to verify the occurrence of grounds for welfare benefits with respect to a person eligible for

support who has filed an application for welfare benefits pursuant to Article 11, he/she may request the head of a financial institution, etc. (referring to a financial company, etc. defined in subparagraph 1 of Article 2 of the Act on Real Name Financial Transactions and Confidentiality and a credit information collection agency defined in subparagraph 6 of Article 2 of the Credit Information Use and Protection Act; hereinafter the same shall apply) to provide financial information, credit information, or insurance information (hereinafter referred to as "financial information, etc.") by a document converting a written consent submitted by a person eligible for support under Article 11 (2) in an electronic form, notwithstanding Article 4 (1) of the Act on Real Name Financial Transactions and Confidentiality and Article 32 (2) of the Credit Information Use and Protection Act. [<Amended by Act No. 12330, Jan. 21, 2014>](#)

(2) Where the Minister of Gender Equality and Family deems it necessary to verify the change or cessation of grounds for welfare benefits with respect to a person eligible for support who receives welfare benefits pursuant to Article 12, he/she may request the head of a financial institution, etc. to provide him/her with financial information, etc. by a document stating personal information according to standards prescribed by Presidential Decree or through an information and communications network, notwithstanding Article 4 (1) of the Act on Real Name Financial Transactions and Confidentiality and Article 32 (2) of the Credit Information Use and Protection Act. [<Amended by Act No. 12330, Jan. 21, 2014>](#)

(3) The head of a financial institution, etc. in receipt of a request to provide financial information, etc. pursuant to paragraphs (1) and (2) shall provide financial information, etc. to the person in question, notwithstanding Article 4 (1) of the Act on Real Name Financial Transactions and Confidentiality and Article 32 of the Credit Information Use and Protection Act.

(4) The head of a financial institution, etc. who has provided financial information, etc. pursuant to paragraph (3) shall notify the relevant person of the fact that he/she has provided financial information, etc.: Provided, That the head of the financial institution, etc. may omit notifications if a relevant person has given his/her consent, notwithstanding Article 4-2 (1) of the Act on Real Name Financial Transactions and Confidentiality and Article 32 (7) of the Credit Information Use and Protection Act. [<Amended by Act No. 13216, Mar. 11, 2015>](#)

(5) A request to provide financial information, etc. and provision of such financial information, etc. under paragraphs (1) through (3) shall be made via an information and communications network defined in Article 2 (1) 1 of the Act on Promotion of Information and Communications Network Utilization and Information Protection, Etc.: Provided, That this shall not apply to inevitable cases, such as breakdown of an information and communications network.

(6) No person who performs or has performed the duties under paragraph (1) through (3) shall either use financial information, etc. he/she has obtained in the course of performing his/her duties differently from the purpose provided for in this Act, or provide or divulge such financial information, etc. to any third person or institution.

(7) Matters necessary for making a request to provide financial information, etc. and providing such financial information, etc. under paragraphs (1) through (3) and (5) shall be prescribed by Presidential Decree.

[This Article Newly Inserted by Act No. 11291, Feb. 1, 2012]

Article 12-4 (Refusal, Change, etc. of Welfare Benefits)(1) Where a person eligible for support who has filed an application for welfare benefits pursuant to Article 11 refuses to submit data, or refuses, interferes with, or evades an examination or inquiry under Article 12-2 (1), the Minister of Gender Equality and Family, a Special Self-Governing City Mayor, the Governor of a Special Self-Governing Province, or the head of a Si/Gun/Gu may refuse to grant welfare benefits. [<Amended by Act No. 12330, Jan. 21, 2014>](#)

(2) The Minister of Gender Equality and Family, a Special Self-Governing City Mayor, the Governor of a Special Self-Governing Province, or the head of a Si/Gun/Gu may take the following measures with respect to persons eligible for support who receive welfare benefits under Article 12: [<Amended by Act No. 12330, Jan. 21, 2014>](#)

1. Where a person eligible for support refuses to submit data, or refuses, interferes with, or evades an examination or inquiry under Article 12-2 (1): Suspending the payment of welfare benefits;
2. Where grounds for welfare benefits of a person eligible for support have changed or ceased: Changing welfare benefits or ceasing the payment of welfare benefits.

[This Article Newly Inserted by Act No. 11291, Feb. 1, 2012]

Article 12-5 (Accounts for Receiving Welfare Benefits)(1) Where a person eligible for support who receives welfare benefits under Article 12 files an application, the State or a local government shall deposit welfare benefits into a designated account in the name of the person eligible for support (hereinafter referred to as "accounts for receiving welfare benefits"): Provided, That where it is impracticable to transfer welfare benefits into an account for receiving welfare benefits due to information and communication problems or other inevitable grounds determined by Presidential Decree, the welfare benefits may be provided as prescribed by Presidential Decree, such as in cash.

(2) The relevant financial institutions in charge of accounts for receiving welfare benefits shall manage the accounts to make sure that the welfare benefits under this Act are exclusively deposited into the accounts for receiving welfare benefits.

(3) The methods of and procedures for application referred to in paragraph (1) and matters necessary for managing the accounts for receiving welfare benefits under paragraph (2) shall be prescribed by Presidential Decree.

[This Article Newly Inserted by Act No. 12330, Jan. 21, 2014]

Article 13 (Lending of Welfare Funds)(1) In order to promote the stabilization of livelihood and self-support of a single-parent family, the State or local governments may lend any of the following funds:

1. Funds required for business;
2. Expenses for the education of children;
3. Medical expenses;
4. Housing funds;
5. Such other funds necessary for the welfare of a single-parent family as prescribed by Presidential Decree.

(2) The limits, methods, and procedures for lending funds under paragraph (1) and other necessary matters shall be determined by Presidential Decree.

[This Article Wholly Amended by Act No. 8655, Oct. 17, 2007]

Article 14 (Acceleration of Employment)(1) The State or local governments shall conduct vocational ability development training in consideration of the capability, aptitude, etc. of mothers and children or fathers and children of single-parent families in order to develop their workplace skills.

(2) The State or local governments shall endeavor to place mothers and children or fathers and children of single-parent families in proper occupation and to have them employed preferentially in various kinds of workplaces in order to accelerate employment thereof.

[This Article Wholly Amended by Act No. 8655, Oct. 17, 2007]

Article 14-2 (Connection of Employment Support)(1) The State and local governments shall establish efficient connection between single-parent family related facilities and agencies, and employment security offices pursuant to subparagraph 1 of Article 2-2 of the Employment Security Act in order to expand opportunities for employment of mothers and children or fathers and children of single-parent families. <Amended by Act No. 9795, Oct. 9, 2009>

(2) The Minister of Employment and Labor shall closely cooperate with the Minister of Gender Equality and Family so that employment support projects, etc. for mothers or fathers and children of single-parent families

can be promoted effectively. [<Amended by Act No. 8852, Feb. 29, 2008; Act No. 9932, Jan. 18, 2010; Act No. 10339, Jun. 4, 2010>](#)

[This Article Newly Inserted by Act No. 8655, Oct. 17, 2007]

Article 15 (Installation of Stalls and Service Booths within Public Facilities)Where the head of a public facility operated by the State or a local government grants permission to install various kinds of stalls and service booths within the public facility, he/she may preferentially grant such permit to single-parent families or single-parent family welfare organizations.

[This Article Wholly Amended by Act No. 8655, Oct. 17, 2007]

Article 16 (Priority in Using Public Facilities)The State or local governments shall endeavor to have children of single-parent families preferentially use public convenient facilities for children and other public facilities.

[This Article Wholly Amended by Act No. 8655, Oct. 17, 2007]

Article 17 (Family Support Services)The State or local governments shall endeavor to provide the following family support services to single-parent families: [<Amended by Act No. 10582, Apr. 12, 2011>](#)

1. Childcare and education services;
2. Supporting services for persons with disabilities, senior citizens, patients with chronic diseases, etc.;
3. Home services, such as cooking, cleaning or laundering;
4. Services for promoting family ties, such as education or counseling service;
5. Legal aid services, such as legal consulting and legal representation for a request for legal acknowledgment, a claim for childcare expenses, etc.;
6. Other support services for single-parent families prescribed by Presidential Decree.

[This Article Wholly Amended by Act No. 8655, Oct. 17, 2007]

Article 17-2 (Educational Support to Young Single-Parents)(1) The State and local governments may provide the following support depending on the choice of young single-parents so that they can continue their study:

1. Support for maintaining as students of schools defined in Article 2 of the Elementary and Secondary Education Act and support for educational expenses or a school graduation equivalency examination;
2. Support for educational expenses to academic ability-accredited lifelong educational establishments under Article 31 (2) of the Lifelong Education Act;
3. Educational support under Article 28 of the Elementary and Secondary Education Act;
4. Other matters prescribed by Ordinance of the Ministry of Gender Equality and Family for educational support to young single-parents.

(2) The superintendent of education in a Special Metropolitan City, Metropolitan City, Special Self-Governing City, Do, or Special Self-Governing Province may provide support for conducting itinerant education to single-parent family welfare facilities under Article 19 for educational support referred to in paragraph (1) 3.

[<Amended by Act No. 12330, Jan. 21, 2014>](#)

(3) In order for young single-parents to go to school and rear children at the same time, the State and local governments may support to enable the children to use the workplace child care centers established in the schools prescribed in Article 2 of the Higher Education Act to which the young single-parents belong. [<Newly Inserted by Act No. 15355, Jan. 16, 2018>](#)

(4) The Minister of Gender Equality and Family shall request cooperation from the Minister of Education so that young single-parents can continue their study. [<Amended by Act No. 11690, Mar. 23, 2013>](#)

[This Article Newly Inserted by Act No. 10582, Apr. 12, 2011]

Article 17-3 (Support for Payment of Childcare Expenses)The Minister of Gender Equality and Family shall prepare guidelines for childcare expenses to calculate childcare expenses so that a court may fully utilize such guidelines when it decides on divorce cases.

[This Article Newly Inserted by Act No. 11291, Feb. 1, 2012]

Article 17-4 (Support for Self-Support of Young Single-Parents)(1) The State or local governments may provide financial support so that young single-parents can create assets necessary for self-support, such as preparing a residence.
(2) Assets created through support under paragraph 1 shall not be included in examination and verification of whether young single-parents are eligible for support under this Act.
(3) The subjects of and standards for supporting self-support under paragraph 1 shall be prescribed by Presidential Decree, and matters necessary for the applications for, and methods of, supporting self-support, the procedures for returning welfare benefits, etc. shall be prescribed by Ordinance of the Ministry of Gender Equality and Family.

[This Article Newly Inserted by Act No. 12330, Jan. 21, 2014]

Article 17-5 (Health Examination of Young Single-Parents)(1) In order to improve the health of young single-parents, the State and local governments may conduct health examinations.
(2) The State and local governments shall notify the young single-parents in question of the results of health examinations prescribed in paragraph (1).
(3) The State and local governments may entrust the implementation of health examination and the notification of the results thereof prescribed in paragraphs (1) and (2) to specialized institutions or organizations.
(4) Persons eligible for and standards for health examinations prescribed in paragraph (1) shall be prescribed by Presidential Decree, and matters necessary for applications for and methods of health examination, notification of results prescribed in paragraph (2), etc. shall be prescribed by Ordinance of the Ministry of Gender Equality and Family.

[This Article Newly Inserted by Act No. 15212, Dec. 12, 2017]

Article 17-6 (Care and Education for Children and Youth)Neither the State nor local governments shall discriminate against any child or youth from single-parent families in providing care and education for children or youth.

[This Article Newly Inserted by Act No. 14448, Dec. 20, 2016]

Article 18 (Sale and Rent of Units of National Housing)In case of the sale or rent of the units of national housing as prescribed by the Housing Act, the State or local governments shall endeavor to have a specified percent of the national housing preferentially sold to single-parent families.

[This Article Wholly Amended by Act No. 8655, Oct. 17, 2007]

Article 18-2 (Establishment of Single-Parent Family Counselling Phones)(1) In order to provide professional and systematic counselling services regarding the provision of comprehensive information on supports for single-parent families, connection to supporting institutions and facilities, etc., the Minister of Gender Equality and Family may establish and operate the Single-Parent Family Counselling Phone.
(2) Matters necessary for the establishment and operation of the Single-Parent Family Counselling Phone prescribed in paragraph (1) shall be prescribed by Ordinance of the Ministry of Gender Equality and Family.

[This Article Newly Inserted by Act No. 15355, Jan. 16, 2018]

CHAPTER III SINGLE-PARENT FAMILY WELFARE FACILITIES

Article 19 (Single-Parent Family Welfare Facilities)(1) Single-parent family welfare facilities shall be as follows: <Amended by Act No. 15355, Jan. 16, 2018>

1. Mother-and-child family welfare facilities: Facilities that provide mother-and-child families with at least one of the following:
 - (a) Support for basic living: Supporting a residence and livelihood for a given period to needy mother-and-child families;
 - (b) Support for communal living: Supporting a residence, etc. to mother-and-child families having difficulties making an independent living for a given period so that they can prepare for self-support through communal living;
 - (c) Support for self-support living: Supporting a residence for a given period to mother-and-child families who have strong desire for self-support;
 2. Father-and-child family welfare facilities: Facilities that provide father-and-child families with at least one of the following:
 - (a) Support for basic living: Supporting a residence and livelihood for a given period to needy father-and-child families;
 - (b) Support for communal living: Supporting a residence, etc. to father-and-child families having difficulties making an independent living for a given period so that they can prepare for self-support through communal living;
 - (c) Support for self-support living: Supporting a residence for a given period to father-and-child families who have strong desire for self-support;
 3. Unmarried mother-and-child family welfare facilities: Facilities that provide unmarried mother-and-child families and unmarried mothers who gave birth to a child with at least one of the following:
 - (a) Support for basic living: Supporting a residence and livelihood (including support for safe delivery when married women among persons eligible for the support prescribed in Article 5 get pregnant or give birth to a child, and for rearing the child after the childbirth) for a given period for safe childbirth during pregnancy and at the time of giving birth to a child of unmarried women, the recovery of both physical and mental health and support for childcare after childbirth;
 - (b) Support for communal living: Supporting a residence, etc. to unmarried mothers who do not raise their children after childbirth, or unmarried mother-and-child families consisting of an unmarried mother and a child so that they can prepare for self-support through communal living for a given period;
 4. Temporary supporting welfare facilities: Facilities that support a residence and livelihood to mothers and children or mothers temporarily or for a given period where a physical or mental abuse of their spouses (including a person in a de facto marital relationship) is likely to hinder the sound raising of children or to injure the health of mothers;
 5. Single-parent family welfare counseling center: Facilities that aim to provide counseling on single-parent family crisis or self-support or to support solving problems.
- (2) Matters necessary for the period of staying in welfare facilities referred to in paragraph (1) 1 through 4 and the extension of such period shall be prescribed by Ordinance of the Ministry of Gender Equality and Family.

[<Amended by Act No. 12330, Jan. 21, 2014>](#)

[This Article Wholly Amended by Act No. 10582, Apr. 12, 2011]

Article 20 (Establishment of Single-Parent Family Welfare Facilities)(1) The State or local governments may establish single-parent family welfare facilities.

(2) Where a young single-parent requests the head of a single-parent family welfare facility under Article 19 to admit him/her to such welfare facility, the head of such welfare facility shall take measures to give priority to admitting him/her. [<Newly Inserted by Act No. 10582, Apr. 12, 2011>](#)

(3) If any person, other than the State or a local government, intends to establish and operate a single-parent family welfare facility, he/she shall file a report with a Special Self-Governing City Mayor, the Governor of a

Special Self-Governing Province, or the head of a Si/Gun/Gu. The same shall also apply where he/she intends to modify important matters prescribed by Ordinance of the Ministry of Gender Equality and Family with respect to the reported matters. [<Amended by Act No. 10302, May 17, 2010; Act No. 10582, Apr. 12, 2011; Act No. 12330, Jan. 21, 2014>](#)

(4) No one who operates an adoption agency under Article 10 of the Act on Special Cases concerning the Promotion and Procedure of Adoption shall establish and operate facilities that provide convenience under Article 19 (1) 3 (a). [<Newly Inserted by Act No. 10582, Apr. 12, 2011>](#)

(5) Standards for the establishment and operation of single-parent family welfare facilities, types of occupation of persons working in such facilities, the number of such persons, criteria for qualifications for such persons, and other matters necessary for filing a report on establishment thereof shall be prescribed by Ordinance of the Ministry of Gender Equality and Family. [<Amended by Act No. 10582, Apr. 12, 2011>](#)

[This Article Wholly Amended by Act No. 8655, Oct. 17, 2007]

Article 21 (Closure or Suspension)(1) If any person who has filed a report on establishment of a single-parent family welfare facility under Article 20 (3) intends to close or temporarily suspend the operation of such facility, he/she shall, in advance, file a report thereon with a Special Self-Governing City Mayor, the Governor of a Special Self-Governing Province, or the head of a Si/Gun/Gu, as prescribed by Ordinance of the Ministry of Gender Equality and Family. [<Amended by Act No. 8852, Feb. 29, 2008; Act No. 9932, Jan. 18, 2010; Act No. 10302, May 17, 2010; Act No. 10582, Apr. 12, 2011; Act No. 12330, Jan. 21, 2014>](#)

(2) The head of a single-parent family welfare facility, where it is subject to closure or temporary suspension of its operation, shall take measures to protect the rights and interests of inmates of the relevant facility as prescribed by Ordinance of Ministry of Gender Equality and Family, such as transferring them to another facility. [<Newly Inserted by Act No. 14069, Mar. 2, 2016>](#)

(3) The Metropolitan Autonomous City Mayor, the Special Self-Governing Province Governor, and the head of a Si/Gun/Gu, upon receipt of a report under paragraph (1), shall take measures as prescribed by Ordinance of Ministry of Gender Equality and Family, such as verifying if the head of the relevant single-parent family welfare facility has taken a measure to protect the rights and interests of inmates of such facility under paragraph (2). [<Newly Inserted by Act No. 14069, Mar. 2, 2016>](#)

[This Article Wholly Amended by Act No. 8655, Oct. 17, 2007]

Article 22 (Obligation of Entrustment)If any person who establishes and operates a single-parent family welfare facility is entrusted by a Special Metropolitan City Mayor, Metropolitan City Mayor, Special Self-Governing City Mayor, Do Governor, or the Governor of a Special Self-Governing Province (hereinafter referred to as "Mayor/Do Governor") or the head of a Si/Gun/Gu to make his/her welfare facility available for a single-parent family, he/she shall not refuse such entrustment without good cause. [<Amended by Act No. 12330, Jan. 21, 2014>](#)

[This Article Wholly Amended by Act No. 8655, Oct. 17, 2007]

Article 23 (Supervision)(1) The Minister of Gender Equality and Family, a Mayor/Do Governor, or the head of a Si/Gun/Gu may require a person who establishes and operates a single-parent family welfare facility to make necessary reports on the welfare facility and also have the relevant public official inspect the operational condition of welfare facility or examine the books and other relevant documents. [<Amended by Act No. 8852, Feb. 29, 2008; Act No. 9932, Jan. 18, 2010>](#)

(2) Each relevant public official who performs his/her duties pursuant to paragraph (1) shall show a certificate verifying his/her authority to the interested persons.

[This Article Wholly Amended by Act No. 8655, Oct. 17, 2007]

Article 24 (Closure of Facilities, etc.)(1) Where any single-parent family welfare facility falls under any of the following cases, a Special Self-Governing City Mayor, the Governor of a Special Self-Governing Province, or the head of a Si/Gun/Gu may order the suspension or discontinuance of its service or may close the facility:

<Amended by Act No. 10302, May 17, 2010; Act No. 10582, Apr. 12, 2011; Act No. 12330, Jan. 21, 2014>

1. Where it fails to meet the equipment standards provided in Article 20 (5);
2. Where it violates Article 22;
3. Where it fails to file a report required under Article 23 (1) without good cause or files a false report or where it refuses or evades an inspection or examination.

(2) Where a single-parent family welfare facility is subject to suspension or discontinuance of its service or closure under paragraph (1), the Metropolitan Autonomous City Mayor, the Special Self-Governing Province Governor, and the head of a Si/Gun/Gu shall take measures necessary to protect the rights and interests of inmates of the relevant facility as prescribed by Ordinance of Ministry of Gender Equality and Family, such as transferring them to another facility. <Newly Inserted by Act No. 14069, Mar. 2, 2016>

[This Article Wholly Amended by Act No. 8655, Oct. 17, 2007]

Article 24-2 (Hearings)If a Special Self-Governing City Mayor, the Governor of a Special Self-Governing Province, or the head of a Si/Gun/Gu intends to order the discontinuance of service or close a facility in accordance with Article 24 (1), he/she shall hold a hearing. <Amended by Act No. 10302, May 17, 2010; Act No. 12330, Jan. 21, 2014; Act No. 14069, Mar. 2, 2016>

[This Article Wholly Amended by Act No. 8655, Oct. 17, 2007]

CHAPTER IV EXPENSES

Article 25 (Subsidization of Expenses)The State or local governments may provide subsidies for the covering of expenses required for single-parent family welfare services as determined by Presidential Decree.

[This Article Wholly Amended by Act No. 8655, Oct. 17, 2007]

Article 25-2 (Collection of Expenses from Unlawful Recipients)(1) Where anyone has obtained welfare benefits or has allowed another person to receive welfare benefits by fraud or other unlawful means, the supporting agency that has paid welfare benefits may collect all or part of the benefits from the person who has received welfare benefits or the person who has allowed another person to receive welfare benefit (hereinafter referred to as "unlawful recipient"). <Amended by Act No. 12330, Jan. 21, 2014>

(2) The amount to be collected pursuant to paragraph (1) shall be collected after notifying the unlawful recipient, and in cases where the unlawful recipient does not comply with it, the amount shall be collected in the same manner as delinquent national or local taxes are collected.

[This Article Newly Inserted by Act No. 8655, Oct. 17, 2007]

Article 26 (Orders to Return Subsidies, etc.)(1) If the head of a single-parent family welfare facility or the head of a single-parent family welfare organization falls under any of the following cases, the State or local governments may order him/her to return all or part of the granted subsidies:

1. Where he/she has violated the conditions for the provision of subsidies;
2. Where he/she has obtained subsidies by fraud or other unlawful means;
3. Where he/she has done any such act as may be designed for personal profits in operating the single-parent family welfare facility;
4. Where he/she has violated this Act or any order issued thereunder.

(2) Where there has occurred excessive payment of the welfare benefit already paid to persons eligible for support following the change, suspension or cessation of welfare benefit, the supporting agency shall immediately order the persons eligible for support to return all or part of such excessive amount: Provided, That

where the persons eligible for support have spent such excessive amount or have other unavoidable reasons, they may be exempted from such return. [<Amended by Act No. 12330, Jan. 21, 2014>](#)

[This Article Wholly Amended by Act No. 8655, Oct. 17, 2007]

CHAPTER V SUPPLEMENTARY PROVISIONS

Article 27 (Prohibition of Transfer, Security and Seizure)(1) No welfare benefits granted under this Act and entitlement to welfare benefits shall be transferred or provided as a security to any third person, and no one shall seize such welfare benefits.

(2) The claims for deposits in accounts for receiving welfare benefits designated under Article 12-5 (1) shall not be seized. [<Newly Inserted by Act No. 12330, Jan. 21, 2014>](#)

[This Article Wholly Amended by Act No. 10582, Apr. 12, 2011]

Article 28 (Requests for Review)(1) If persons eligible for support, their relatives, or other interested persons have objection to welfare benefits, etc. under this Act, they may, in writing, apply to the relevant welfare services agency for the review of the relevant decision within 90 days from the date they were notified of such decision. [<Amended by Act No. 12330, Jan. 21, 2014>](#)

(2) Upon receipt of an application for review under paragraph (1), the relevant welfare services agency shall review and decide on the matter within 30 days and notify the applicant thereof.

[This Article Wholly Amended by Act No. 8655, Oct. 17, 2007]

Article 29 (Penalty Provisions)(1) Any person who uses or divulges financial information, etc., in violation of Article 12-3 (6), shall be punished by imprisonment with labor for not more than five years or by a fine not exceeding 50 million won. [<Newly Inserted by Act No. 11291, Feb. 1, 2012; Act No. 12330, Jan. 21, 2014>](#)

(2) Any person who uses or divulges data, etc., in violation of Article 12-2 (4), shall be punished by imprisonment with labor for not more than three years or by a fine not exceeding 30 million won. [<Newly Inserted by Act No. 11291, Feb. 1, 2012; Act No. 12330, Jan. 21, 2014>](#)

(3) Any of the following persons shall be punished by imprisonment with labor for not more than one year or by a fine not exceeding ten million won: [<Amended by Act No. 10582, Apr. 12, 2011; Act No. 12330, Jan. 21, 2014; Act No. 14069, Mar. 2, 2016>](#)

1. A person who establishes a single-parent family welfare facility without filing a report required under Article 20 (3);
2. A person who continues to provide services after he/she has been ordered to close the facility or to suspend or discontinue the services under Article 24 (1).

(4) Any person who has received welfare benefits or has allowed any other person to receive welfare benefits by fraud or other unlawful means shall be punished by imprisonment with labor for not more than one year, a fine not exceeding ten million won, misdemeanor imprisonment, or a minor fine. [<Amended by Act No. 12330, Jan. 21, 2014>](#)

[This Article Wholly Amended by Act No. 8655, Oct. 17, 2007]

Article 30 (Joint Penalty Provisions)If a representative of a corporation, or an agent, employee or servant of a corporation or individual commits an offense under Article 29 in connection with the business of the corporation or individual, not only shall such violator be punished, but also the corporation or individual shall be punished by a fine or penalty under the relevant Article: Provided, That this shall not apply where such corporation or individual has not been negligent in giving due attention and supervision concerning the relevant business in order to prevent such violation.

[This Article Wholly Amended by Act No. 10302, May 17, 2010]

Article 30-2 (Administrative Fines)(1) Any of the following persons may be punished by an administrative fine not exceeding three million won: [<Amended by Act No. 10582, Apr. 12, 2011>](#)

1. A person who refuses entrustment without just ground, in violation of Article 22;
2. A person who fails to file a report under Article 23 (1) without good cause, or files a false report, or refuses or evades an inspection or examination.

(2) Administrative fines under paragraph (1) shall be imposed and collected by the Minister of Gender Equality and Family, as prescribed by Presidential Decree.

[This Article Newly Inserted by Act No. 10302, May 17, 2010]

Article 31 (Delegation of Authority)The Minister of Gender Equality and Family or a Mayor/Do Governor may delegate part of his/her authority under this Act to the head of a Si/Gun/Gu as prescribed by Presidential Decree. [<Amended by Act No. 8852, Feb. 29, 2008; Act No. 9932, Jan. 18, 2010>](#)

[This Article Wholly Amended by Act No. 8655, Oct. 17, 2007]

+ ADDENDA <Act No. 5453, Dec. 13, 1997>

Article 1 (Enforcement Date)

+ ADDENDUM <Act No. 5454, Dec. 13, 1997>

This Act shall enter into force on January 1, 1998. (Proviso Omitted.)

+ ADDENDA <Act No. 5612, Dec. 30, 1998>

Article 1 (Enforcement Date)

+ ADDENDA <Act No. 6024, Sep. 7, 1999>

Article 1 (Enforcement Date)

+ ADDENDA <Act No. 6801, Dec. 18, 2002>

Article 1 (Enforcement Date)

+ ADDENDA <Act No. 7413, Mar. 24, 2005>

Article 1 (Enforcement Date)

+ ADDENDA <Act No. 8119, Dec. 28, 2006>

(1) (Enforcement Date) This Act shall enter into force three months after the date of its promulgation: Provided, That the amended provisions of Article 5-2 shall enter into force on January 1, 2007.

+ ADDENDA <Act No. 8655, Oct. 17, 2007>

Article 1 (Enforcement Date)

+ ADDENDA <Act No. 8852, Feb. 29, 2008>

Article 1 (Enforcement Date)

+ ADDENDA <Act No. 9795, Oct. 9, 2009>

Article 1 (Enforcement Date)

+ ADDENDA <Act No. 9932, Jan. 18, 2010>

Article 1 (Enforcement Date)

+ ADDENDA <Act No. 10302, May 17, 2010>

(1) (Enforcement Date) This Act shall enter into force three months after the date of its promulgation.

+ ADDENDA <Act No. 10339, Jun. 4, 2010>**Article 1 (Enforcement Date)****+ ADDENDA <Act No. 10582, Apr. 12, 2011>****Article 1 (Enforcement Date)****+ ADDENDA <Act No. 11291, Feb. 1, 2012>****Article 1 (Enforcement Date)***** ADDENDUM <Act No. 11674, Mar. 22, 2013>**

This Act shall enter into force six months after the date of its promulgation.

+ ADDENDA <Act No. 11690, Mar. 23, 2013>**Article 1 (Enforcement Date)****+ ADDENDA <Act No. 12330, Jan. 21, 2014>****Article 1 (Enforcement Date)****+ ADDENDA <Act No. 13216, Mar. 11, 2015>****Article 1 (Enforcement Date)***** ADDENDUM <Act No. 14069, Mar. 2, 2016>**

This Act shall enter into force six months after the date of its promulgation.

*** ADDENDUM <Act No. 14448, Dec. 20, 2016>**

This Act shall enter into force on the date of its promulgation.

*** ADDENDUM <Act No. 15212, Dec. 12, 2017>**

This Act shall enter into force six months after its promulgation.

*** ADDENDUM <Act No. 15355, Jan. 16, 2018>**

This Act shall enter into force six months after its promulgation.